

LexisGraph Compliance Report

PLATFORM REPORT
Automated Legal Compliance
Analysis

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Organization:	5bfc49d8-51c0-41b9-b834-dff761802253	Status:	COMPLIANCEREPORTSTATUS.COMPLETED
Regulation Document:	9f7922be-c127-4987-aaa1-d0a54f1920d9	Policy Document:	f5b3d60f-d29b-44cc-a9fa-dc8c92a2a705

OVERALL COMPLIANCE SCORE	EVALUATED RISK LEVEL
36%	CRITICAL RISK

Executive Summary

Evaluated 195 regulation requirements against policy document 'LexisGraph Technologies Pvt Policy.pdf'. Findings: 31 Compliant, 79 Partially Compliant, 85 Non-Compliant. Overall compliance score: 36.1%.
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Clause Evaluation Statistics

Total Clauses	Compliant	Partially Compliant	Non-Compliant
195	31	79	85

Actionable Recommendations

- Update policy wording to explicitly mandate: 'of the total wages payable to him, shall be deemed to form part of the wages of such employee; (z) w...'
- Draft an explicit policy section covering: 'Where the composition of any offence is made after the institution of any prosecution, such composit...'
- Draft an explicit policy section covering: 'After considering the recommendation of the committee appointed under clause (a) of sub-section () o...'
- Update policy wording to explicitly mandate: 'No employer shall pay to any employee wages less than the minimum rate of wages notified by the appr...'
- Update policy wording to explicitly mandate: 'Deductions under clause (f) of sub-section () of section for recovery of advances given to an employ...'
- Update policy wording to explicitly mandate: 'Where employees are employed on piece work, for the purpose of sub-section (), the appropriate Gover...'
- Draft an explicit policy section covering: 'Power of officers of appropriate Government to impose penalty in certain cases.'

8. Draft an explicit policy section covering: 'The State Advisory Board and each of the committees and sub-committees thereof shall consist of pers...'
9. Update the policy to include a clear mechanism for determining the time limit for payment of wages, taking into account the circumstances under which wages are to be paid.
10. Update the policy to explicitly address the requirements for minimum wages, wage deductions, discrimination in wages, and payment of bonus, and ensure that the policy complies with the regulation.
11. Update the policy to include a requirement for the balance sheet and profit and loss account to be audited by a Chartered Accountant and produced during the course of proceedings before a Tribunal.
12. Update the policy to include a requirement for the officer conducting the enquiry to have the power to summon and enforce attendance of any person acquainted with the facts and circumstances of the case.
13. Update the policy to include a requirement for the Inspector-cum-Facilitator to give an opportunity to the employer to comply with the provisions of the Code by way of a written direction.
14. Update the policy to include a requirement for the Central Advisory Board and the State Advisory Board to regulate their own procedure, including that of the committees and sub-committees constituted by the State Advisory Board.
15. Update the policy to include a requirement for the accounting year to be the year commencing on the 1st day of April.
16. Update policy wording to explicitly mandate: 'Where in any accounting year any amount has been carried forward and set on or set off under this se...'
17. Draft an explicit policy section covering: 'Audited accounts of companies shall not normally be questioned. ()...'
18. Draft an explicit policy section covering: 'The minimum rates of wages fixed by the appropriate Government under section shall not be less than ...'
19. Update policy wording to explicitly mandate: 'For the purposes of section , an employee shall be deemed to have worked in an establishment in any ...'
20. Draft an explicit policy section covering: 'Nothing contained in this Code shall be deemed to affect the provisions of the Mahatma Gandhi Nation...'
21. Draft an explicit policy section covering: 'For the purposes of sub-sections (), () and (), sale of the goods produced or manufactured during th...'
22. Update policy wording to explicitly mandate: 'Any employer who (a) pays to any employee less than the amount due to such employee under the provis...'
23. Draft an explicit policy section covering: 'No suit, prosecution or any other legal proceeding shall lie against the appropriate Government or a...'
24. Draft an explicit policy section covering: 'From the eighth accounting year following the accounting year in which the employer sells the goods ...'
25. Draft an explicit policy section covering: 'The appropriate Government may, by notification, direct that any power exercisable by it under this ...'
26. Draft an explicit policy section covering: 'The Central Government shall constitute the Central Advisory Board which shall consist of persons to...'
27. Update policy wording to explicitly mandate: 'A deduction under clause (c) or clause (n) of sub-section () of section for damage or loss shall not...'
28. Draft an explicit policy section covering: 'Any person required to produce any document or to give any information required by a Inspector- cum-...'

29. Draft an explicit policy section covering: 'One-third of the members referred to in sub-section () shall be women and one among the members spec...'
30. Draft an explicit policy section covering: 'The Central Advisory Board constituted under sub-section () shall from time to time advise the Centr...'
31. Update policy wording to explicitly mandate: 'Where in respect of any accounting year referred to in sub-section (), the allocable surplus exceeds...'
32. Draft an explicit policy section covering: 'Where there is any dispute regarding the quantum of bonus, the authority notified by the appropriate...'
33. Update policy wording to explicitly mandate: 'Where a claim has been filed on account of non-payment of remuneration or bonus or less payment of w...'
34. Draft an explicit policy section covering: 'Where an employer fails to get the accounts audited under sub-section (), the authority, appellate a...'
35. Draft an explicit policy section covering: 'For the sixth and seventh accounting years following the accounting year in which the employer sells...'
36. Update policy wording to explicitly mandate: 'Any minimum rate of wages fixed or revised by the appropriate Government under section may consist o...'
37. Update policy wording to explicitly mandate: 'No fine shall be imposed on any employee until such employee has been given an opportunity of showin...'
38. Draft an explicit policy section covering: 'Power of officers of appropriate Government to impose penalty in certain cases. ()...'
39. Update the policy to include the requirement for obtaining advice from the Central Advisory Board and consulting State Governments.
40. Update the policy to include the requirement for the committee to consist of persons representing employees, independent persons, and members specified in clause (a).
41. Update the policy to include the requirement for the authority to issue a certificate of recovery to the Collector or District Magistrate.
42. Update the policy to include the requirement for the employer to produce reasonable proof of payment of wages to the persons employed.
43. Update the policy to include the requirement for the appellate authority to dispose of the appeal within a period of three months.
44. Draft an explicit policy section covering: 'Every rule made by the State Government under this section shall, as soon as possible after it is ma...'
45. Update policy wording to explicitly mandate: 'so notified, shall be deemed as remuneration and shall be accordingly added in wages under this clau...'
46. Draft an explicit policy section covering: 'When an application is made to the authority, appellate authority, Tribunal or arbitrator, as the ca...'
47. Draft an explicit policy section covering: 'If any difficulty arises in giving effect to the provisions of this Code, the Central Government may...'
48. Update policy wording to explicitly mandate: 'of the salary or wage of the days such employee has worked in that accounting year, shall be proport...'
49. Update policy wording to explicitly mandate: 'A deduction under clause (d) or clause (e) of sub-section () of section shall not be made from the w...'

50. Update policy wording to explicitly mandate: 'Where in any accounting year, (a) an employer has paid any puja bonus or other customary bonus to em...'
51. Draft an explicit policy section covering: 'The provisions of sub-sections (), () and () shall, so far as may be, apply to new departments or un...'
52. Revise the policy to include a clear mechanism for determining the minimum rate of wages on a time work basis.
53. Revise the policy to include a clear mechanism for displaying acts and omissions on the premises.
54. Revise the policy to include a clear mechanism for deciding claims within a period of three months.
55. Revise the policy to include a clear mechanism for appointing the appellate authority.
56. Update policy wording to explicitly mandate: 'Where an employee does two or more classes of work to each of which a different minimum rate of wage...'
57. Update policy wording to explicitly mandate: 'Notwithstanding anything contained in sub-section (), where an offence under this Code has been comm...'
58. Draft an explicit policy section covering: 'It shall come into force on such date¹ as the Central Government may, by notification in the Officia...'
59. Update policy wording to explicitly mandate: 'Every employer shall issue wage slips to the employees in such form and manner as may be prescribed....'
60. Update policy wording to explicitly mandate: 'Where any claim, dispute or appeal with respect to bonus payable under this Code between an employer...'
61. Draft an explicit policy section covering: 'Nothing contained in sub-section () shall apply to an offence committed by a person for the second t...'
62. Draft an explicit policy section covering: 'For the purposes of this section the expression firm shall have the same meaning as assigned to it i...'
63. Update policy wording to explicitly mandate: 'For the purpose of calculation of the bonus where the wages of the employee exceeds such amount per ...'
64. Update policy wording to explicitly mandate: 'of the total salary or wage of the employees employed in the establishment in that accounting year, ...'
65. Draft an explicit policy section covering: 'The gross profits derived by an employer from an establishment in respect of the accounting year sha...'
66. Update policy wording to explicitly mandate: 'No fine shall be imposed on any employee save in respect of those acts and omissions on his part as ...'
67. Update policy wording to explicitly mandate: 'However, in case of repetition of the contravention within a period of five years such opportunity s...'
68. Draft an explicit policy section covering: 'When the accounts are audited under sub-section () or sub-section (), the provisions of section shal...'
69. Draft an explicit policy section covering: 'Where any offence is compounded before the institution of any prosecution, no prosecution shall be i...'
70. Update policy wording to explicitly mandate: 'Every employer shall pay all amounts required to be paid under this Code to every employee employed ...'
71. Update policy wording to explicitly mandate: 'Where the total deductions authorised under sub-section () exceed fifty per cent....'

72. Specify the threshold for the one-half rate and the percentage in the policy clause.
73. Revise the policy to include the specific regulation about the General Clauses Act and its application to the repeal of enactments.
74. Specify in the policy that a single application can be filed for multiple employees in the same establishment.
75. Review and revise the wage structure and payment methods to ensure alignment with the Government's intention towards wage equity and leave policies.
76. Define the role of employees in cases of company offences and the due diligence they are expected to follow.
77. Clearly specify the sub-section for payment in the policy document.
78. Amend the policy to include specific payment timelines for removal, dismissal, retrenchment, and resignation.
79. Incorporate the establishment of a State Advisory Board in the policy document.
80. Review and revise the policy to ensure that total deductions do not exceed 50% of wages.
81. Incorporate procedures for fixing or revising minimum wages in the policy document.
82. Specify the method for recovering excess wages in the policy document.
83. Update policy wording to explicitly mandate: 'For the purpose of sub-section (), an employer shall not be deemed to have derived profit in any acc...'
84. Draft an explicit policy section covering: 'in case of other establishment, of the available surplus and the available surplus shall be the amou...'
85. Draft an explicit policy section covering: 'The Central Government may, for carrying into execution of the provisions of this Code in the State ...'
86. Update policy wording to explicitly mandate: 'The appropriate Government may extend the coverage of such provisions to the Government establishmen...'
87. Update policy wording to explicitly mandate: 'Any contract or agreement whereby an employee relinquishes the right to any amount or the right to b...'
88. Draft an explicit policy section covering: 'Without prejudice to the provisions of sub-section (), the appropriate Government may, by notificati...'
89. Update policy wording to explicitly mandate: 'For the purposes of this section, an employee shall be deemed to be absent from the place where he i...'
90. Draft an explicit policy section covering: 'All such deductions and all realisations thereof shall be recorded in a register to be kept in such ...'
91. Revise the policy to include provisions for wage adjustments based on skill level, geographic area, or both.
92. Revise the policy to include a clear calculation of the available surplus and specify that it will be used to pay bonuses according to the 60% rule.
93. Revise the policy to include provisions for the extent to which loans may be granted to employees, and the rate of interest payable.
94. Revise the policy to ensure that bonuses are paid out of the allocable surplus, which is 60% of the available surplus.
95. Revise the policy to include provisions for posting the required notice on the notice board at a prominent place in the establishment.
96. Revise the policy to include a clear definition of remuneration in kind and a method for valuing it.

97. Update policy wording to explicitly mandate: 'A deduction shall not be made under sub-section () until the employee has been given an opportunity ...'
98. Draft an explicit policy section covering: 'All fines and all realisations thereof shall be recorded in a register to be kept in such manner and...'
99. Update policy wording to explicitly mandate: 'The employer shall fix the wage period for employees either as daily or weekly or fortnightly or mon...'
100. Draft an explicit policy section covering: 'No offence punishable under the provisions of this Code shall be compounded except under and in acco...'
101. Draft an explicit policy section covering: 'If in any accounting year an establishment in public sector sells any goods produced or manufactured...'
102. Update policy wording to explicitly mandate: 'Where any deduction is made by the employer from the wages of an employee under this section but not...'
103. Update policy wording to explicitly mandate: 'The Central Government may, subject to the condition of previous publication, make rules for, (a) th...'
104. Draft an explicit policy section covering: 'When the authority, appellate authority, Tribunal or arbitrator, referred to in sub-section (), as t...'
105. Draft an explicit policy section covering: 'Notwithstanding such repeal, anything done or any action taken under the enactments so repealed incl...'
106. Draft an explicit policy section covering: 'Notwithstanding anything contained in the Code of Criminal Procedure, (of), any offence punishable...'
107. Draft an explicit policy section covering: 'In computing the allocable surplus under this section, the amount set on or the amount set off under...'
108. Update policy wording to explicitly mandate: 'Notwithstanding anything contained in this Code, an employee shall be disqualified from receiving bo...'
109. Update policy wording to explicitly mandate: 'Notwithstanding anything contained in sub-section (), for the offences of non-maintenance or imprope...'
110. Draft an explicit policy section covering: 'Every Inspector-cum-Facilitator appointed under sub-section () shall be deemed to be public servant ...'
111. Update policy wording to explicitly mandate: 'Where the rates of wages are fixed by the hour or by the day or by the month, the manner of calculat...'
112. Draft an explicit policy section covering: 'Every rule made by the Central Government under this section shall be laid, as soon as may be after ...'
113. Consider revising the policy to include daily, weekly, and fortnightly payment schedules to ensure compliance with the regulation.
114. Update the policy to include a clause ensuring that no court inferior to a Metropolitan Magistrate or Judicial Magistrate of the first class tries offenses under the policy.
115. Consider establishing a maximum timeframe for resolving disputes regarding regular wages or other employment matters to ensure compliance with the regulation's spirit.
116. Consider adding a clause that outlines how the company will handle exceptional circumstances to ensure continuity with the regulation.
117. Revise the policy to explicitly state the bonus payment rate and duration of employment for eligible employees to ensure compliance with the regulation.

118. Update the policy to include a clause that explicitly states the employment of the Code of Criminal Procedure for search and seizure procedures.
119. Revisit the policy to include specific obligations and procedures for the employer to prove due diligence and the employee's misconduct in such cases.
120. Incorporate a clause in the policy that outlines the process for the State Advisory Board to constitute committees or sub-committees as per the regulation.
121. Update the policy to specify the composition terms of the Central Advisory Board, State Advisory Board, and their committees/sub-committees as per the regulation.
122. Clarify the claim filing procedures, including details on when and how such claims can be made through the employee, trade unions, or the Inspector-cum-Facilitator.
123. Add a specific description of the 'manner' for disciplinary actions to the policy, such as a clear outline of the steps for wage deductions, suspension, and termination.
124. Update the policy to include the exact procedures for the Inspector-cum-Facilitator as per the regulation.
125. Update the policy to include the specific details about the recovery of expenses, fines, and deductions as per the regulation, such as the reference to sub-section and the payment of expenses by the employer.
126. Add a clause to the policy that explicitly states that fines cannot be recovered after 90 days from the day on which they were imposed, in accordance with the regulation.
127. Review and update the policy to cover all the aspects outlined in the regulation, such as the calculation of wages, arduous work, and the norms for minimum wages, to ensure comprehensive alignment.
128. Update the policy to include a clear outline of the appeal procedure, including the time frame for filing an appeal, as stipulated by the regulation, such as 90 days from the date of the order.
129. Update policy wording to explicitly mandate: 'Deductions may be made under clause (b) of sub- section () of section only on account of the absence...'
130. Update policy wording to explicitly mandate: 'Where an employee whose minimum rate of wages has been fixed under this Code by the hour, by the day...'
131. Update policy wording to explicitly mandate: 'The following sums shall be deducted from the gross profits as prior charges, namely: (a) any amount...'
132. Draft an explicit policy section covering: 'ii) supplies contract labour for any work of the establishment as mere human resource and includes a...'
133. Draft an explicit policy section covering: 'STATEMENT OF OBJECTS AND REASONS The Second National Commission on Labour, which submitted its repor...'
134. Draft an explicit policy section covering: 'Where for any accounting year, the allocable surplus exceeds the amount of maximum bonus payable to ...'
135. Update policy wording to explicitly mandate: 'Any amount deposited with the appropriate Government by an employer to secure the due performance of...'
136. Update policy wording to explicitly mandate: 'Where an establishment consists of different departments or undertakings or has branches, whether si...'
137. Review and revise the policy to explicitly prohibit wage reductions and discrimination in hiring on the ground of sex, and provide clear guidance on non-discriminatory hiring practices.
138. Review and revise the policy to include all the required factors as specified in the regulation, and provide clear guidance on the consideration of these factors.

139. Review and revise the policy to align it with the regulation, and only allow deductions that are explicitly authorized under the Code.
140. Review and revise the policy to include penalties for non-compliance with company rules, and specify the consequences of non-compliance.
141. Review and revise the policy to align it with the regulation, and specify that fines shall be deemed to have been imposed on the day of the act or omission.
142. Review and revise the policy to include the issuance of directions as an explicit power of the State Government.
143. Review and revise the policy to ensure that it complies with the regulation, and include a specific requirement for one-third of the members to be women.
144. Modify the policy to specify the exact allowed payment modes and include floor wage requirements for different geographical areas, and consider adding a provision to eliminate arbitrariness and malpractices in inspections.
145. Amend the policy to specifically address paying wages at not less than the minimum time rate for piece work.
146. Review and revise the policy to align with the regulation's tax calculation requirements and clearly outline the policy's stance on tax.
147. Modify the policy to include provisions for the role of the appropriate Government in imposing penalties and holding inquiries in accordance with the regulation.
148. Enhance the policy by explicitly outlining procedures for resolving disputes over bonus and the application of the Code in public sector establishments.
149. Clarify and modify the policy to ensure it conforms to the regulation's stipulations on fixing hours of work and payment for days of rest.
150. Modify the policy by incorporating the regulation's framework for compounding offenses under relevant sections.
151. Revise policy clause [1] to include provisions for salary deductions in case of repeated absenteeism or late reporting.
152. Revise policy clause [1] to specify the timeframe for filing an application in case of delayed payments.
153. Revise policy clause [1] to include provisions for compounding offenses.
154. Revise policy clause [1] to ensure that the provisions of the Code take precedence over any other laws or agreements.
155. Revise policy clause [1] to specify minimum rates of wages for time work and piece work.
156. Revise policy clause [1] to specify the minimum bonus requirements for employees with partial working days.
157. Revisit and incorporate legal aspects concerning reporting to relevant authorities for compliance with statute book.
158. Incorporate requirements for parliamentary notification within the policy as per legal mandate.
159. Explicitly include or refer to wage payment timelines adherence to other existing laws within the policy document.
160. Update policy by specifically stating the maximum fine amount is 3% of wages.
161. Update policy clause [1] to explicitly mention the required number of employees and their equal representation as per clause (a)
162. Update the policy to include a specific provision for the Central Government's power to fix minimum wages